

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Joan B. Lovely

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect individuals with service animals in public accommodation.

PETITION OF:

NAME:

Joan B. Lovely

DISTRICT/ADDRESS:

Second Essex

SENATE No.

By Ms. Lovely, a petition (accompanied by bill, Senate) (subject to Joint Rule 12) of Joan B. Lovely for legislation to protect individuals with service animals in public accommodation. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect individuals with service animals in public accommodation.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 98A of Chapter 272 of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by striking out the amount “three hundred dollars” and
3 replacing it with “five hundred dollars for the first offense, seven hundred dollars for the second
4 offense, and one thousand dollars for the third offense and every subsequent offense”.

5 SECTION 2. Chapter 272 of the General Laws is hereby amended by inserting after
6 Section 98A the following section:

7 Section 98A1/2. Any individual with a disability who is accompanied by a service dog
8 that is denied access to any place of public accommodation will have the ability to request local
9 law enforcement to:

10 (a) inform the business owner or agent of the legal obligations under Section 98A and
11 the Americans with Disabilities Act;

12 (b) direct the business owner or agent to permit entry to the individual with a service
13 dog unless a lawful exception applies;

14 (c) issue a written warning or citation for violations established by the executive
15 office of public safety and security;

16 The Executive Office of Public Safety and Security shall develop and implement training
17 for all law enforcement officers regarding the rights of individuals with service dogs and the
18 procedures set forth in this section.